

PUBLIC SUBMISSION

As of: March 21, 2025
Received: March 14, 2025
Status: [REDACTED]
Tracking No. m89-gfzy-x28q
Comments Due: March 15, 2025
Submission Type: Web

Docket: NSF_FRDOC_0001

Recently Posted NSF Rules and Notices.

Comment On: NSF_FRDOC_0001-3479

Request for Information: Development of an Artificial Intelligence Action Plan

Document: NSF_FRDOC_0001-DRAFT-1582

Comment on FR Doc # 2025-02305

Submitter Information

Name: Bill L.

Address: United States,

Email: [REDACTED]

General Comment

Hello,

I am writing to express profound concern regarding the proposals submitted by Google and OpenAI in response to the Request for Information on the Development of an Artificial Intelligence Action Plan. While these companies advocate for sustaining America's leadership in AI, their suggestions concerning copyright law pose a serious threat to the rights of creators and the ethical foundations of our innovation economy.

Protecting Creators' Rights:

At the heart of our cultural and technological progress lies the respect for intellectual property. Copyright law grants creators exclusive rights over their works, incentivizing creativity and ensuring that artists, writers, musicians, and other creators can benefit from their labor. Google and OpenAI propose expanding the scope of "fair use" to allow unrestricted access to copyrighted material for AI training without consent or compensation. This undermines the fundamental rights of creators and devalues their contributions.

Limits of Fair Use:

The fair use doctrine is not a blanket exception permitting corporations to exploit copyrighted works for commercial gain. It is intended for specific purposes such as criticism, comment, news reporting, teaching, scholarship, or research. Utilizing vast amounts of copyrighted material to train AI models that are then used for profit exceeds these bounds. Such practices infringe upon the exclusive rights of creators and can diminish the market for the original works, and displace the labor that creates it.

Economic and Ethical Implications:

By using copyrighted works without authorization, these companies gain financially while creators receive nothing, or are disadvantaged. This threatens the livelihoods of those who rely on royalties and licensing fees. If creators cannot expect fair compensation, there will be less incentive to produce new works, leading to a decline in cultural richness, and risks compromising an industry which accounts for billions of dollars annually of GDP. Disregarding the need for consent also raises serious ethical issues. The argument that obtaining permissions is impractical does not justify violating creators' rights, and runs contrary to what OpenAI themselves have done by forging license agreements with data providers through legal channels. Ethical AI development must respect the autonomy of creators and involve them in decisions about how their works are used.

Avoiding a Race to the Bottom:

Using China as a rationale to weaken our copyright protections is a manipulative tactic that encourages a dangerous race to the bottom. While it's important to remain competitive, compromising our ethical standards and legal protections is not the answer. America should lead by upholding strong intellectual property rights, setting a global example, and fostering trust in our commitment to justice and fairness. Indeed, at this time, China has taking more steps in labeling AI content, and in providing more guidance that is favorable to rights-holders than the US has.

Promoting Ethical Innovation:

Innovation does not require sacrificing creators' rights. We should promote AI development that respects intellectual property, encourages licensing agreements, and compensates creators fairly. This approach fosters sustainable innovation and supports a vibrant creative community.

I urge the Office of Science and Technology Policy to:

- Uphold Strong Copyright Protections: Reject proposals that expand fair use beyond its intended purpose. Protect the exclusive rights of creators to control their works.
- Encourage Ethical AI Development: Support practices that obtain consent and provide fair compensation to creators whose works are used in AI training.
- Resist Manipulative Justifications: Do not allow international competition to undermine our ethical standards. Maintain America's commitment to the rule of law and individual rights.
- Ensure Economic Fairness for Creators: Explore mechanisms such as licensing frameworks to ensure creators are compensated when their works contribute to AI models.
- Mandate Transparency and Accountability: Require AI developers to disclose the sources of their training data and establish oversight to prevent unauthorized use of copyrighted materials.

By taking these steps, we can advance AI technology while preserving the rights of creators and upholding ethical standards. It is crucial that we do not compromise our values in pursuit of technological progress.

Thank you for considering these concerns. I am confident that, with thoughtful action, we can foster an environment where innovation and creative expression thrive together.

Sincerely,

Bill L.
Aspiring artist